

Retrospective OMF charges — unreasoned order quashed

High Court of Judicature at Allahabad · Division Bench · 17 August 2026 · Writ - C No. 27416 of 2026 · **Impugned order quashed for lack of reasons; Executive Engineer to pass a fresh order on the retrospective claim after the petitioner pays current-bill arrears.**

HEADNOTE

An Executive Engineer's order reiterating retrospective electricity charges, made without dealing with the consumer's objection under clause 5.6 of the U.P. Electricity Supply Code, 2005 and the recorded CT ratio/OMF, suffers from lack of reasons and is quashed. A fresh order on the retrospective claim is to follow payment of outstanding current bills.

FACTUAL SUMMARY

The petitioner challenged an order dated 6 November 2025 reiterating retrospective electricity charges on bills already paid. A coordinate Bench on 13 August 2025 had directed MRI supply, a hearing, a reasoned order, and no coercive recovery. The petitioner's 16 September 2025 objection alleged a fresh sealing certificate showing OMF=200 without clause 5.6 compliance, and that the 9 May 2023 certificate recorded CT ratio 10/5 and OMF=2, not 1000/5. The company said the MRI was supplied and the petitioner heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

retrospective assessment / meter multiplier (OMF)

HOLDING

An order reiterating retrospective charges without dealing with the consumer's objection—including alleged non-compliance with clause 5.6 (no check meter; MRI not properly supplied) and the sealing-certificate CT ratio/OMF of 10/5 and 2 versus the claimed 1000/5 and 200—suffers from lack of reasons and is set aside. The Executive Engineer must pass a fresh order on the retrospective claim after the consumer pays outstanding arrears on current bills. ¶ 3, 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CLAUSE 5.6 PROCEDURE

Whether clause 5.6 was complied with (check meter; MRI analysis) before the OMF=200 assessment.

NOT DECIDED — CT RATIO / OMF

Whether the CT ratio is 1000/5 (OMF 200) or 10/5 (OMF 2) as recorded in the 9 May 2023 sealing certificate.

NOT DECIDED — RETROSPECTIVE CHARGES

Merits of the retrospective consumption charges.